

24CMCV00337 24CMCV00337

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-10

Motion: DISTRICT'S MOTION FOR RECONSIDERATION

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Case Number: 24CMCV00337 Hearing Date: September 10, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

E.G., et al.,

Plaintiffs,

vs.

LOS

ANGELES UNIFIED SCHOOL DISTRICT,

Defendant.

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CASE NO: 24CMCV00337

[TENTATIVE]

ORDER RE: DISTRICT'S MOTION FOR RECONSIDERATION

Dept.

A

DATE:

September 10, 2026

TIME:

8:30 A.M.

Complaint:

03/11/2024

FAC:

04/24/2024

Trial:

10/12/2026

MOVING

PARTY: Defendant Los Angeles

Unified School District

RESPONDING

PARTY: Plaintiff E.G.

1.

Background

Plaintiff E.G.

("Plaintiff") alleges that on September 11, 2023, Plaintiff was a student at King/Drew Magnet High School of Medicine and Science, a school within defendant Los Angeles Unified School District ("District"). Plaintiff alleges that, on September 11, 2023, Plaintiff was assaulted by a fellow student. Plaintiff alleges that staff members of the school failed to adequately supervise Plaintiff, failed to administer medical care of Plaintiff after the incident, and failed to timely notify Plaintiff's parents that he was assaulted.

On

August 3, 2026, the court heard Plaintiff's motion to compel further answers in the deposition of Dr. Anita Herrera Hamilton. The court took the matter under submission. On August 18, 2026, the court entered its ruling on the matter.

2.

Discussion

District moves for reconsideration of the court's August 18, 2026 order. District contends that this order contradicts the court's July 24, 2025 order concerning Plaintiff's independent medical examination ("IME"), as well as the court's August 3, 2026 tentative order. In opposition, Plaintiff contends that District has not brought forth any new facts, circumstances, or law and that there has been no reversal or contradiction of any order by the court.

Code

of Civil Procedure § 1008, subdivision (a) provides:

When an

application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

A court acts

in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499 (Gilberd).) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Ibid.)

Moreover,

there is a strict requirement of diligence, which means the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) The burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.)

District

has not presented any new facts, circumstances, or law. The court's August 18, 2026 order self-evidently does not constitute new facts or circumstances justifying reconsideration of itself, or else reconsideration would be available on any order and Code of Civil Procedure § 1008's restrictions would be meaningless. Moreover, the court considered its July 24, 2025 order in making its August 18, 2026 order, as evidenced by the court's reference thereto within its August 18, 2026 order. The fact that District disagrees with the court's interpretation of the July 24, 2025 order is not grounds for

reconsideration, nor is the fact that the court changed its final order from its August 3, 2026 tentative. "Courts are not bound by their tentative rulings." (Brown, Winfield & Canzoneri, Inc. v. Superior Court (2010) 47 Cal.4th 1233, 1245.) The court will therefore deny District's motion for reconsideration.

3.

Conclusion

Based

on the foregoing, the court DENIES District's motion for reconsideration.

District is ordered to give notice.

IT IS SO ORDERED.

DATED: September 10, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court